IPA
AN FORAS RIARACHÁIN
INSTITUTE OF PUBLIC
ADMINISTRATION

Certificate in Local Government Studies
(Accredited by NUI)

LESSON 10
Road Transportation and Safety

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LEARNING OBJECTIVES:

When you have studied this lesson, you should be able to:

- Outline the main characteristics of Ireland's road network.
- Describe the responsibilities of local authorities and other public bodies for the various functions relating to roads.
- Outline the procedures and legislation associated with these functions.
- Give a short account of the financing of road operations.
- make the case for the importance of roads in the context of economic/ social/ community development.

10.0 INTRODUCTION

A good road network is essential to the effective operation of a successful economy. Ireland is a small open economy on the periphery of Europe and is very dependent on international trade. Ireland must compete effectively for inward investment across the globe; such investment has been a key instrument of economic development policy for many decades. The competitive nature of business requires that transportation and distribution costs are contained. Employment opportunities may otherwise be lost, as such costs are particularly significant in a peripheral location such as Ireland. Travel times and delays become a cost centre for business as well as other road users.

Roads are also a vital communication link to support community development, to facilitate movement in rural areas and to foster social inclusion. Given the limited range of Ireland's public transport systems (buses, trams and trains) and Ireland's dispersed settlement pattern, the dominant mode of transport is, and will likely continue to be, our road system using vehicular transport.

The existence of a superior network of roads can influence the timing and location of investment, the encouragement of job creation and the development of housing settlements. Consequently, there is a clear link between roads, as a communication channel, and land use, e.g. housing, business and technology parks, recreational and amenity areas, all of which have consequential effects on infrastructure.

The type of road and the level of usage influence state grant allocations, with a view to meeting central and local policy objectives. Public Private Partnership (PPP) arrangements have been used in the construction of a number of motorways in order to supplement financial resources available. If public funding is constrained, roads spending must compete with hospitals, schools, housing, water and waste water services and so on. Use of the road system also involves considerations of safety, traffic management, and regulation with regard to taxation and licensing.

When studying this lesson you should keep in mind the role played by the roads network in our society. When considering the various programmes/procedures you should try to assess

their effectiveness in achieving the desired economic, social, environmental and community-development outcomes.

10.1 OVERVIEW OF IRELAND'S PUBLIC ROADS

By European standards, Ireland possesses a very extensive system of public roads. For each 1,000 population, we have roughly twice as many kilometres of road as in Belgium, Denmark and France, and over three times as many as in Italy, the Netherlands and Spain. The history of our dispersed settlements and low density of our population, and our still relatively low level of urbanisation, account for our high dependency on the road system and for its extent. This also dictates the forms of transport deemed appropriate – the railways that are extensively used in some European countries may not be viable options for many parts of Ireland.

There is no single transport authority in Ireland, so transport functions are assigned to different bodies. Transport includes rail, air, sea and road communications. As the National Competitiveness Council (*Ireland's Competitiveness Challenge*, 2018, p. 115) has suggested, transport plays a key role in supporting economic development:

> An environmentally sustainable transport system is essential to meet the significant increase in travel demand in recent years, to ease urban congestion and achieve the national policy objective of a low-carbon economy. A high-quality transport system improves the efficiency of supply chains, by facilitating local firms to embed themselves into global value chains and grow their business. Access to markets for people and goods is one of the major factors for companies in deciding where to locate. Economic growth, along with falling unemployment and rising population, has significantly increased the demand on existing transport infrastructure. Parts of the transportation network (urban areas and inter-urban corridors) are showing signs of increasing congestion and overcrowding … Deficiencies in transport infrastructure can adversely affect national competitiveness, reduce productivity and raise business costs and diminish the attractiveness of Ireland as a location to set up business, live and work. To deliver sustainable economic growth, it is important that the Irish transport infrastructure is secure, flexible, and well inter-connected. Furthermore, given our environmental commitments, continued actions to reducing greenhouse gas emissions will be essential.

A high-quality road network (including elements of motorway) is a standard feature of the infrastructure available for business in a majority of modern economies (just as broadband is) as it facilitates modern logistics techniques. Its absence country-wide in Ireland results in unfavourable comparisons when companies are selecting investment locations and also hampers the activities of indigenous industry. The importance of the road network as a medium of transport cannot be overstated. Roads account for over 95% of passenger traffic and 98.3% of internal merchandise trade is carried on the road network.

There is a strong relationship between levels of economic activity and the number of vehicles on the roads. Transport Infrastructure Ireland publish a National Transport Model which estimates travel demand forecasts for future years, for 2030 and 2050 across different

transport modes. The demand for transport varies according to a range of different factors, including:

- The size of the population (forecast to continue rising).
- The age distribution of the population (average age will increase).
- The rate of car ownership among the adult population has continued to rise but may level off.
- Economic activity both in terms of the movement of goods and the location of jobs (all forecast to increase).

An understanding of land use changes is important in order to identify where transport constraints are likely to arise. Investment in transport yields a return over an extended period of at least 30 or 40 years, which implies that the land use changes over this time horizon need to be taken into account – hence the emphasis placed in more recent years on aligning both the National Planning Framework (NPF) and the National Development Plan (NDP) as Ireland's medium to long-term frameworks for both spatial planning and capital investment.

The key results of the population and jobs forecasts include:

- The central forecast estimates that the population of Ireland will continue to grow.
- Population is forecast to increase in and around the large urban areas.
- Jobs and economic activity are also forecast to increase.
- The location of jobs will be concentrated in and around larger urban areas.

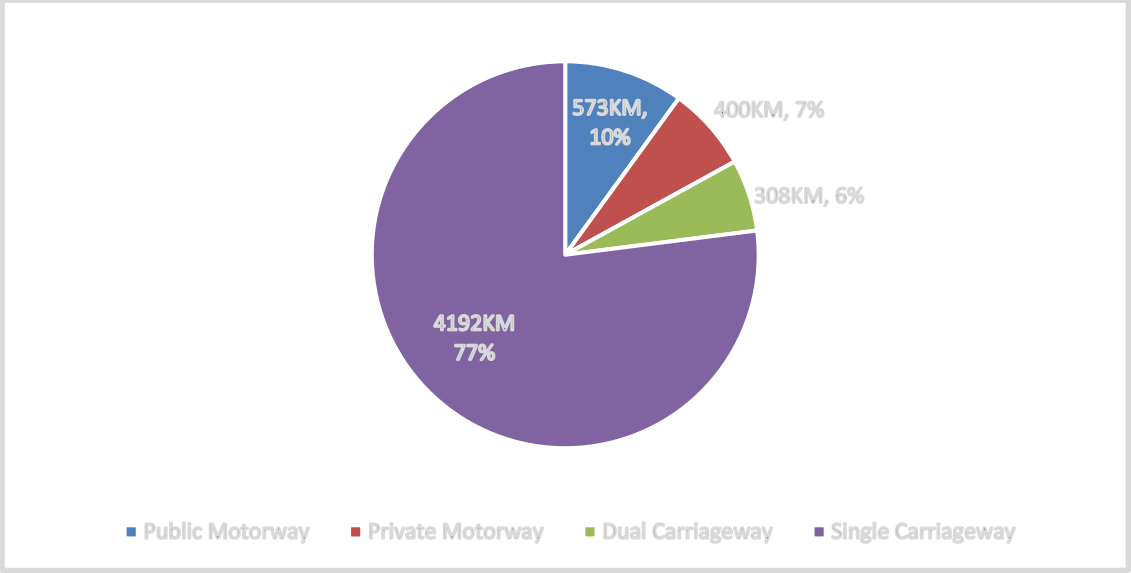
An overview of Ireland's road network is provided below:

Details of Ireland's Road Network		
	Kms	**%**
Motorway	973	1
Dual Carriageway	308	0.3
National Primary	1,436	1.4
National Secondary	2,696	2.7
Regional	13,124	13.1
Local	81,300	81.5
TOTAL	99,837	100

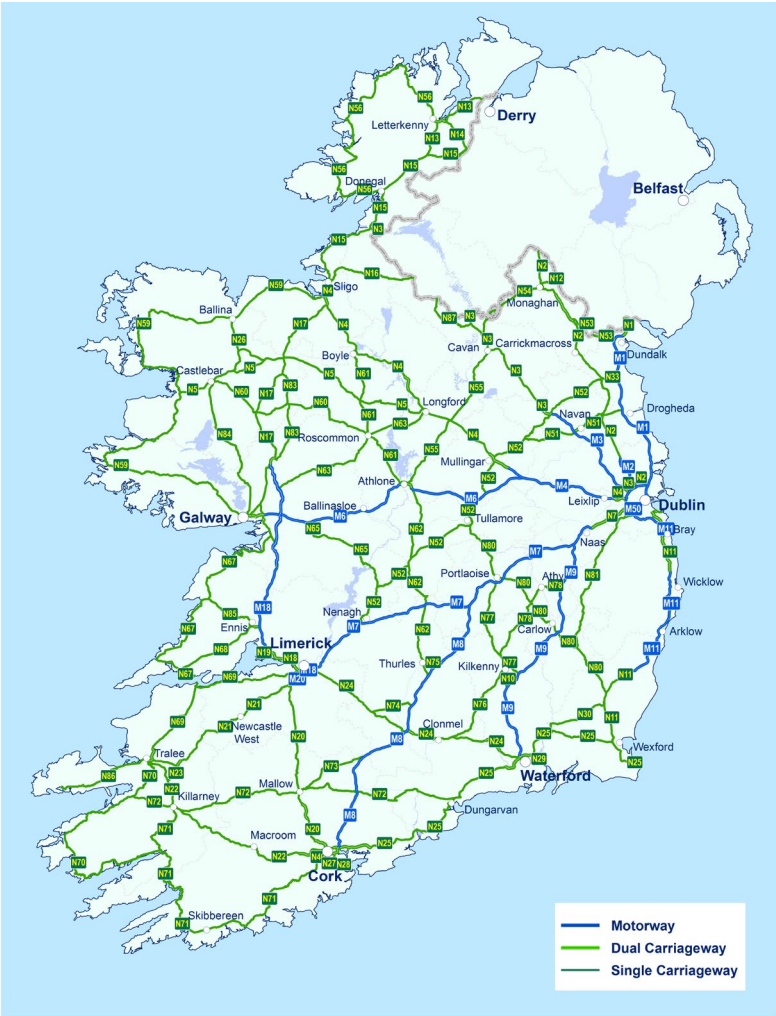
10.1.1 National Roads

While National Roads account for less than 5.4% of the total roads network, they account for roughly half of all traffic. This consists of a mix of motorway, dual carriageway and single carriageway national primary and secondary roads (see map below). TII has primary responsibility for managing the national road networks with some sections of national road maintained through contracts, by PPP, or by local authorities. All other roads (regional and local roads) are considered non-national roads. Non-National Roads make up over 94% of the network and around half of all traffic.

Figure 10.1 Types of National Road



National Road Network



Source: Transport Infrastructure Ireland

10.1.2 Non-National Roads

Local authorities operate and maintain the network of regional and local roads in their area. As noted above, non-national roads make up over 94% of the network and around half of all traffic. Non-national roads play an important economic role in Ireland because of the dispersed population settlement and economic development patterns, the importance of tourism and agriculture as generators of wealth and employment, and government policy in supporting both rural development and urban regeneration. In many areas regional roads and even local roads would be as important, if not more so, than national secondary roads. Non-national roads provide transport links and mobility within and between local economies, along with crucial links to the strategic national road network and ports and airports, which are our links with the wider European economy.

10.1.3 Road Management Offices (RMOs)

RMOs have been set up in Donegal and Cork County Councils as centralised supports for local authorities. The road network is the largest capital asset managed by local authorities. RMOs were established to provide a central support and guidance to local authorities in terms of:

- Road asset management.
- Improving best practice and capacity.
- Road licensing activities.
- Greater consistency in road maintenance and investment.
- A means through which local authorities can make technical submissions on national policy development on road and transport issues.

The RMOs manage a GIS-based road asset management system known as MapRoad (see below) and are also involved in a project to replace all public lighting with modern low energy consumption bulbs as part of efforts by local authorities to reach their national energy efficiency targets, and reduce energy and maintenance costs.

A Design Manual for Urban Roads and Streets has also been prepared by the Department of Transport for local authorities and professional groups involved in the planning and construction of roads. This provides guidance relating to the design of urban roads and streets with a view to ensuring that the streets of our cities and towns, suburbs and villages are safe, attractive and comfortable for all users, not just drivers, but also pedestrians, cyclists, and those using public transport – particularly in more built-up areas.

10.2 PUBLIC ROADS

The definition of a "public road" is contained in the Roads Act, 1993. Section 2 of the Act defines a public road as "a road over which a public right-of-way exists and the responsibility for the maintenance of which lies on a road authority" and includes:

"(a) any street, lane, footpath, square, court, alley or passage;
(b) any bridge, viaduct, underpass, subway, tunnel, overpass, overbridge, flyover, carriageway (whether single or multiple), pavement or footway;
(c) any weighbridge ... toll plaza ... service area ...
(d) any other structure or thing forming part of the road."

To repeat, there are two essential elements in determining whether a road is a "public road". Firstly, there must be a public right-of-way over the road. Secondly, the maintenance must lie with the road authority. If either of these requirements is absent, the road is "non-public".

10.2.1 How Public Roads are Created

A public road may be created by two methods:

(a) By virtue of an Act of the Oireachtas.
(b) By the dedication of the owner of the property and acceptance by the public, i.e. when the owner of the land dedicates to the public a right of passage over it and the public accepts the right offered to them. In practice, dedication is generally proven through use by the public, and use by the public is also evidence of their acceptance of the dedication.

Section 11 of the Roads Act, 1993 deals with the power of road authorities to declare roads to be public roads.

Pre-Conditions

- The road must be of general public utility.
- A public right-of-way must exist over the road.
- The road authority must consider the financial implications of taking on responsibility for an additional public road and must consider any objections or representations made by the public.

Procedure

- Public notice must be given of the proposal to declare the road to be a public road.
- At least one month must be allowed for inspection of the proposals and a further two weeks for the making of objections or representations.

The making of the order declaring a road to be a public road and the consideration of objections or representations on such proposals are reserved functions.

Roads built by a local authority are held to be public roads when their construction is intended for use by the general public. Therefore, unless the road authority decides otherwise, all roads constructed by it automatically become public roads thus eliminating the need for a formal declaration process.

10.2.2 Roads Network and Classification

Under the Roads Act, 1993 (Section 10) public roads are classified as national, regional or local. The Minister for Transport is empowered to declare roads to be national roads or regional roads. The remaining roads are local roads.

National roads have been sub-divided into National Primary and National Secondary routes.

- National Primary Roads are major long-distance through routes linking the principal ports and airports, cities and large towns.
- National Secondary Roads are medium-distance through-routes connecting important towns.
- Regional Roads are also referred to as Regional Main roads and are the main feeder routes into, and provide the main links between, national roads.
- Local Roads include all rural and urban roads other than those classified as national or regional roads. These are sub-divided in turn into primary, secondary and tertiary local roads.

Road authorities are required to maintain a 'Road Schedule and Map' showing the road network for their authority. Each road has a designated number that corresponds to the schedule – some roads will extend through the areas of several road authorities and will maintain their index number.

The classification of a road is denoted by a letter, e.g. "N" denotes National Road (the numbers N1 to N50 are reserved for National Primary Roads), "R" a Regional Road and "L" a Local Road. The letter "M" denotes a Motorway.

10.3 ROAD AUTHORITIES

City, County and City and County Councils are road authorities. Transport Infrastructure Ireland (TII) has primary responsibility for the management and maintenance of the national road network, with some sections maintained via contract, others via PPPs and others through local authorities. Prior to 2015, TII was known as the National Roads Authority (NRA), until this body was merged with the Railway Procurement Agency to form TII. As noted above, roads other than national roads, often referred to as non-national roads (namely regional and local roads) are managed and maintained by their respective local authority.

The Roads Act, 1993 provides that local people may undertake works on local roads with the consent of the road authority and under its supervision. This provision does not apply to national or regional roads. A road authority may impose conditions, restrictions or requirements when consenting to such work. When the work is carried out in accordance with the consent, any responsibility will rest with the road authority and not with the private citizen(s) who carried out the work. The work, in effect, is deemed to have been carried out by the road authority. The road authority has the power to provide materials, equipment

and plant, and the services of its staff to private individuals or voluntary associations carrying out work on a local road.

10.4 ABANDONMENT OF PUBLIC ROADS

Section 12 of the Roads Act, 1993 deals with the power of road authorities to abandon public roads. Once a road has been abandoned the road authority is no longer responsible for its maintenance, but the abandonment does not affect the public right-of-way over the road which continues to exist (a public right-of-way can only be extinguished through the procedure set out in Section 73 of the Roads Act, 1993 – see below).

The power to abandon local roads is devolved to the road authority. In the case of national or regional roads, any order to abandon a road must be approved by the Minister for Transport. The Minister must consult with TII before making a decision affecting a national road.

The procedure is as follows:

- Public notice must be given by placing a notice in one or more newspapers circulating in the area.
- A sign must be placed at either end of the road affected for an aggregate period of at least fourteen days.
- The minimum period for inspection of any proposal is one month.
- A further two weeks must be allowed for the making of objections or representations.
- Any person making objections or representations can request the local authority to hear the case at an oral hearing.
- The making of an order to abandon the road and the consideration of objections or representations are reserved functions.
- After an abandonment order has been made, further notice must be published in a newspaper.
- The road authority must also notify the objectors and persons who made representations.

10.5 EXTINGUISHMENT OF PUBLIC RIGHT-OF-WAY

The power to extinguish a public right-of-way is contained in Section 73 of the Roads Act, 1993. This power is devolved to the elected members, subject to the approval of the Minister, where the extinguishment applies to a national or regional road. In the case of a national road, the Minister must consult with TII.

- Adequate notice must be given in at least one newspaper circulating in the area.
- A sign must be placed at either end of the road affected for an aggregate period of at least fourteen days.
- The minimum period for inspection of any proposal is one month.

- A further two weeks must be allowed for the making of objections or representations.
- A person making objections or representations can request an oral hearing.
- The making of an extinguishment order and the consideration of objections or representations are reserved functions.
- The local authority is no longer responsible for the maintenance of a road following the extinguishment of the public right-of-way.

10.6 FINANCING OF ROAD OPERATIONS

Ireland has seen major expansion in the level of investment in our road network. During the 1980s, 1990s and early 2000s this effort was greatly assisted by funding from the EU Cohesion and Structural Funds but this has now largely come to end. Students should be able to differentiate between funding at national level and funding for national roads.

10.6.1 Funding at National Level

This section deals with where the money that the Department of Transport allocates to local authorities for roads (national and non-national) comes from.

At national level, the sources of capital funding for the roads improvement programme are:

- Exchequer funds – as per the Public Capital Programme and included in the National Development Plan 2018-2027.
- The private sector – Public Private Partnerships (PPPs), toll schemes.

The sources of funding for non-national road grants are:

- The Exchequer.
- The EU, for example via grants supporting rural development.

This funding is channelled to local authorities through the Department of Transport and TII.

A certain amount of funding is also provided by the National Transport Authority (NTA) to local authorities. This relates to improvements that deliver benefits in public transport, cycling facilities and so on.

10.6.2 Funding at Local Level

This section sets out where local authorities source funding for roads purposes – for both national and non–national roads.

Road construction and maintenance operations carried out by road authorities are funded from the following sources:

- Grants from TII, NTA and from the Department of Transport.

- Local authority resources as provided for annually in the annual Budget.
- Development contributions (capital sums paid as part of planning permissions).
- Local contributions – community-assisted roadworks.

Each year, road authorities are notified of the amount of Road Grants which will be allocated to them by TII and the Department of Transport, and these are based on the NDP.

The types of grant available for public roads are set out below:

National Roads

- Major Improvement Works to NP/NS – includes by-passes, motorways, etc.
- Pavement Improvement Works.
- National Primary/Secondary Maintenance/Upkeep.
- National Primary/Secondary Winter Maintenance.
- National Primary/Secondary Resurfacing.
- Bridge Maintenance.
- Traffic Route Lighting.
- Safety Measures.
- Traffic Calming.
- Special Maintenance – eradication of noxious weeds.

The above are generally 100% funded by TII.

Funding for safety measures includes works such as improved delineation, road signage, school warning signs/flashing lights, traffic calming, low-cost remedial measures at high-risk accident locations and provision of automated traffic counters/speed detectors.

Non-National Roads

As mentioned above, regional and local roads serve significant economic and social functions. They support economic development and also have valuable social and community effects in linking local communities. There are almost 94,000kms of regional and local roads in Ireland, which account for over 94% of the country's roads network and they carry around half of all road traffic. These roads are often the sole means of access for local economic operators and businesses.

An amount of €4.5 billion was earmarked for non-national roads (i.e. regional and local roads) over the 2018-27 period. Non-national road grants comprise a mix of capital and current grants, project based grants and discretionary or block grants.

The following are details of some of the main types of grant allocations for non-national roads in a selected year (2024):

Figure 10.2Details of 2024 Grants by Category from Dept of Transport to Local Authorities

Road Pavement Strengthening Works	€303m
Preventative Surface Dressing Work	€75m
Discretionary Maintenance and Strengthening Works	€84m
Specific and Strategic Regional and Local Roads Projects	€70m
Bridge Rehabilitation Works	€16m
Safety Improvement Works	€11m
Drainage Works	€18m
Community Involvement Scheme	€13m
Climate Change Adaptation and Resilience Works	€16m
Sinage	€1m
Severe Weather Works	€22.5m
Former National Roads	€12m
Miscellaneous Grants	€16.5
Total	**€658m**

Source: Department of Transport

Students should note the value of these grants to local authorities in the context of supplementing their own budgets. As a simple average, each local authority receives c. €21.2m. This can obviously vary considerably by local authority area, as allocations for the larger grant schemes are made based on the length of regional and local roads in the local authority area. Students should also note though that the names and categorisation of different grant schemes can evolve and change slightly from year to year – it is also worth observing that most of the grant categories are quite specific, which limits the discretion that authorities in terms of the works undertaken.

Primary responsibility for improvement and maintenance of regional and local roads rests with local authorities. State grants are intended to supplement realistic contributions by local authorities from their own resources. Students will recall the discretion given to elected members to increase the LPT or ARV which will facilitate local funding for non-national roads.

Road Works Programme

On receipt of notification of allocations, each road authority draws up a programme for improvement and maintenance works for the year, based on grants and own-resource provision, identifying the individual roads that will receive attention. The types of work financed under Department of Transport allocations and local sources include remedying defects, pavement and damage repairs, surface dressing and resealing, road reconstruction and strengthening, winter maintenance, safety improvements, bridge rehabilitation, drainage works, climate change adaptation and resilience, and hedge trimming. This

programme then forms part of the Schedule of Municipal District Works that is adopted by the elected members at Municipal District level.

10.7 PROVISION OF ROADS INFRASTRUCTURE

10.7.1 National Development Plan

The National Development Plan 2021–30 provides for a total investment of €165 billion between 2021 and 2030 to achieve 10 national strategic objectives (NSOs).

"1. Compact growth
2. Enhanced Regional Accessibility
3. Strengthened Rural Economies and Communities
4. Sustainable Mobility
5. A Strong Economy, supported by Enterprise, Innovation and Skills
6. High-Quality International Connectivity
7. Enhanced Amenity and Heritage
8. Climate Action
9. Sustainable Management of Water and other Environmental Resources
10. Access to Quality Childcare, Education and Health Services" (Government of Ireland, 2021, pp. 6-7).

Both the National Planning Framework (NPF) and the National Development Plan (NDP) seek to better align and integrate the objectives of Ireland's capital investment strategy with the national strategic planning framework.

A range of national roads projects are identified as part of the plan (Government of Ireland, 2021, p. 64), alongside increased investment in public transport and cycling and walking infrastructure to facilitate active travel. In considering the impact of investment on the environment, the NDP states that expenditure on public transport will benefit the environment by "encouraging a significant modal shift through greater levels of investment [in public transport and cycling and walking infrastructure] and further development of meaningful alternatives to private car uses" (Government of Ireland, 2021, p. 130). Investment in road improvement and new roads will reduce congestion, thus improving fuel efficiency of motorised vehicles and curtailing emissions.

10.7.2 Construction/Improvement of Major Road Projects

The development of a roads network must ensure safer transportation to users at a minimum cost. Road projects must ensure the maximum return from investment and should be designed in such a manner as to accommodate present and future maximum speed limits.

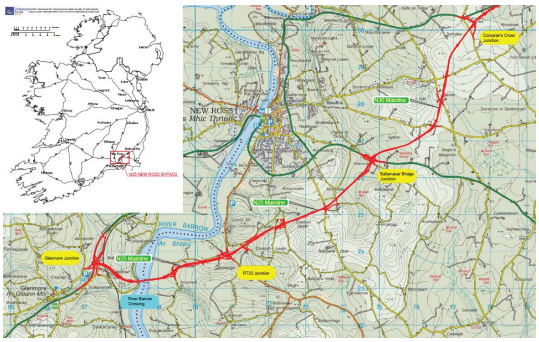
Major road construction projects are now done by contract. Road authorities employ design staff for preparation of plans, designs, etc. The design of major projects on national roads such as by-passes, motorways and dual carriageways are usually handled by Regional Road Design Offices.

Under Part 8 of the Planning and Development Regulations, 2001 a local authority must give public notice of proposals involving the construction of a new road or the widening or realignment of an existing road, where the length of road is over 100m in an urban area or 1 km in a rural area. The plans for the road project must be made available for inspection and comment.

Specified road developments require the preparation of an Environmental Impact Assessment Report (EIAR – see also Lessons on Environmental Protection and Planning). These developments include the construction of:

- Motorways.
- Roads of four lanes or more (with an overall length of 8km or more in a rural area or 500m or more in an urban area).
- A tunnel of over 100m in length.

Even if schemes fall below the legal threshold for an Environmental Impact Assessment, it is necessary to demonstrate that the scheme was developed taking into account environmental considerations. Road development proposals must also take account of the requirements of the Habitats Directive and Special Areas of Conservation. Safety audits are now an integral part of any proposed road scheme and must be carried out by specially trained consultants independent of the Road Design Team. Land for road development proposals may be acquired by agreement or in accordance with a Compulsory Purchase Order (CPO) (see Lesson on Planning) or Motorway Order.



Pictured: Ireland's longest bridge, New Ross Bypass

10.7.3 Non-National Roads

As noted above, the work of local authorities in maintaining regional and local roads includes remedying defects, pavement and damage repairs, surface dressing and resealing, road reconstruction and strengthening, winter maintenance, safety improvements, bridge rehabilitation, drainage works, climate change adaptation and resilience, and hedge trimming.

Local authorities can draw on objective information in making decisions around prioritisation of different types of work for the forthcoming year, and which parts of the regional and local road network in their area are in particular need to attention. A Pavement Surface Condition Index (PSCI) exists to identify the condition of the road network, based on a 10-point scale (a

rating of 1 indicating severe deterioration, while a rating of 10 applies where the road is in perfect condition). Local authorities are required to carry out surveys of the regional and local road network in their area on a regular basis to ensure the Index remain accurate. A road asset management GIS system (known as MapRoad) is also operated by the Roads Management Office to record surface dressing and road strengthening works, with local authorities submitting details of proposed works using the system.

10.7.4 Health & Safety

The requirements of health & safety legislation and the Health and Safety Authority (HSA) are a major issue for local authorities, particularly in the area of roads. The main legislation is the Safety, Health & Welfare at Work Act, 2005 (as amended), but there are also a number of regulations that specify requirements for employers and employees.

While the basic principles of health and safety law remain unchanged, the 2005 Act included more detailed and stringent provisions than the Safety, Health & Welfare at Work Act, 1989, which it replaced. Some of the changes are:

- Large fines and / imprisonment for serious breaches of health and safety regulations.
- The introduction of an on-the-spot fines system for certain safety offences.
- Drug and alcohol testing for employees.

Examples of some of the requirements include:

- Ensuring employees have received the necessary training – for example: use of Personal Protective Equipment (PPE); safe pass course; working at heights; signing, lighting and guarding; etc.
- Induction of employees and contractors into the workplace.
- Ensuring documentation is in place for both the authority and the contractors – Safety Statements and Method Statements.
- Appointing Project Supervisors.
- Carrying out Risk Assessments.
- Putting in place Standard Operating Procedures and Safe Systems of Work Plans.
- Monitoring and reviewing.

Complying with health and safety requirements has major cost implications for local authorities.

10.8 MOTORWAYS

The legislation governing the provision of motorways, bus-ways and protected roads is contained in Part IV of the Roads Act, 1993 as amended by the Roads Act, 2007. The 2007 Act provides that a road authority may make a motorway scheme, a service area scheme, a bus-way scheme, a protected road scheme or a protected road scheme amending a protected road scheme approved under the 1993 Act. The local authority must consider the

financial implications, the necessity for the motorway and the public utility, etc. before making a motorway scheme. An Environmental Impact Assessment Report (EIAR) identifying the likely effects on the environment of the proposed road development must be prepared.

The powers and functions of the Minister as prescribed in the 1993 Act were transferred to An Comisiún Pleanála / An Bord Pleanála under the Planning and Development Act 2000. A notice must be published in a newspaper circulating in the area stating that a Scheme has been prepared and giving details of where the plans may be inspected. The local authority must serve a notice on every owner/occupier of land affected by the motorway. The notice must state:

- the nature and the extent of the Scheme
- that it will be submitted to An Comisiún Pleanála for approval
- the time limit within which objections can be made.

The Scheme may include provision for a service area. Planning permissions along the route are suspended until such time as An Comisiún Pleanála makes a decision on the proposed Scheme. If the Scheme is approved, planning permissions will be revoked or modified (subject to appropriate compensation).

It should be noted that approval of the scheme by An Comisiún Pleanála has the same effect as if the Scheme was a Compulsory Purchase Order (CPO) for acquisition of land, with the usual provisions as to compensation, arbitration and rights of appeal to the courts. Access to a motorway is strictly controlled under the Act, and the classes of vehicles which may use the motorway are prescribed.

The Planning and Development (Strategic Infrastructure) Act, 2006 provides for the making directly of applications to An Comisiún Pleanála for certain public and private development of strategic importance to the State. This applies where the development would be of strategic economic or social importance to the State or the region in which it would be situated, would contribute significantly to the fulfilment of any of the objectives in the National Planning Framework or in any regional spatial and economic strategy in force in the area where it would be situated, or would have a significant effect on the area of more than one planning authority. This Act is aimed at overcoming the substantial delays encountered in proposals to deliver major infrastructural projects due to objections at the planning stage (see also Lesson on Planning).

Under the Roads Act, 2007 the Minister for Transport may, on the application of the TII, by order declare as a motorway any *existing* public road. A motorway may therefore be a public road or proposed public road specified to be a motorway in a motorway scheme approved under the Roads Act, 1993.

10.9 TOLL ROADS/ PUBLIC PRIVATE PARTNERSHIPS (PPPs)

Toll roads are an example of the "user pays" principle and provide a private source of revenue for the construction and maintenance of particular roads. Earlier National Development Plans (for example the one running from 2007-2013 had a financial target of securing private finance for PPP projects on national roads. The NDP 2021-30 has no such targets, and refers to a review of existing PPPs to assess their value for money, but which also noted that PPPs can continue to play a significant role in the delivery of key pieces of national infrastructure in areas such as transport, energy and broadband.

At the heart of the PPP approach is the idea that better value for money can be achieved by private sector enterprise due to the enhanced scope for innovation and by allocating the risk to the party best able to manage it. The injection of private finance could also be said to accelerate the delivery of projects. Under the NDP 2007-2013, PPP road schemes were carried out with a long-term concession period (of not less than 30 years). During the contract term, the concessionaire recoups construction and on-going operation costs through the collection of tolls, along with a public subsidy, where necessary.

In the case of a national road, TII must publish a notice notifying citizens in the area that a Toll Scheme change is being proposed.

10.10 ROLE OF THE DEPARTMENT OF TRANSPORT

Policy responsibility in relation to the national road network and road transport generally (including non-national roads) is assigned to the Department of Transport (the full title of this Department has varied over time, but for the sake of simplicity we refer to it here by its shorthand title of 'Department of Transport'). This Department is responsible for developing and implementing the integrated transport policies outlined in the Programme for Government across different transport modes, including roads. In addition to having policy responsibility for Irish transport policy (including roads), the Department also drafts legislation in this area. As noted above, the Department of Transport also make budgetary decisions and allocations for road projects, including making allocations to local authorities for work on non-national roads.

10.11 TRANSPORT INFRASTRUCTURE IRELAND (TII) (FORMERLY THE NATIONAL ROADS AUTHORITY (NRA))

The NRA was established under the Roads Act, 1993 and had overall responsibility for national roads (including the access routes to the principal ports and airports). TII was established through a merger of the NRA and the Railway Procurement Agency under the Roads Act 2015, with effect from August 2015. The agency has a mandate to optimise delivery of national roads, light rail and other infrastructure initiatives and programmes and ensure value for money.

The duties of the TII are:

- Preparing plans for the development of national roads.
- Preparation of road designs and maintenance programmes.
- Constructing, improving and maintaining national roads.
- Specifying standards in relation to construction or maintenance works.

The maintenance of most sections of the national road network is undertaken through contracts managed by TII, although some sections of national roads are maintained through PPPs or through local authorities.

Under the Planning and Development Regulations, 2001, TII must be notified of planning applications that involve a new access or material widening of an access to an existing or planned national road or where the development might give rise to a significant increase in the volume of traffic using a national road. In cases where TII recommends refusal of a planning permission, the decision of the local authority must be forwarded, in writing, to TII within 7 days. Where the decision is one to approve the proposed development, which is at variance with the recommendation of TII, the local authority is requested to submit a report to TII. TII has appealed to An Comisiún Pleanála a number of decisions which were at variance with policy on the control of frontage development on national roads.

Students should note that TII has primary responsbility for maintaining the national route network. The network's primary purpose is to allow traffic move safely and speedily between cities and large towns. In the past, local authorities granted planning permissions which diminished the carrying capacity of national routes in contravention of their primary purpose. Thus local considerations may have trumped national policy. The Roads Act 1993 introduced the provision for a protected road scheme which may prohibit or restrict a road to specific types of traffic or specified classes of vehicles.

10.12 NATIONAL TRANSPORT AUTHORITY

The National Transport Authority is a state agency operating under the supervision of the Department of Transport. It was established under the Dublin Transport Authority Act 2008 – while it was originally intended that it would have a remit for transport in the Greater Dublin Area under the 2008 Act, it was renamed as a National Transport Authority in the Public Transport Regulation Act 2009. Subsequent legislation and various Statutory Instruments extended the Authority's functions and geographic remit.

Active Travel

The NTA Manage the Active Travel Investment Programme and make funding allocations to local authorities for active travel projects, such as segregated cycleways, widening footpaths and walking infrastructure, greenways, walking and cycling bridges and pedestrian crossings. In addition, the NTA have responsibility for sustainable transport and public transport accessibility grants. The NTA also manage the contracts for the operation of the public bikes schemes in Cork, Limerick and Galway.

Regional Metropolitan Transport Strategies

A key undertaking by the NTA has been the preparation of transport strategies for the areas of Dublin, Cork, Limerick, Waterford and Galway cities. These strategies set out how transport will be developed across these cities and their wider regional hinterland or metropolitan area over a 20 year period and are approved by the Minister for Transport. The strategies' purpose is "to contribute to the economic, social and cultural progress of the cities/regions by providing for the efficient, effective and sustainable movement of people and goods". The transport strategies provide a framework for the planning and delivery of transport infrastructure and services in the wider city areas. The NTA also provides a transport planning policy around which other agencies involved in land use planning, environmental protection, and delivery of other infrastructure such as housing, water and power, can align their investment priorities. The strategies are an essential component, along with investment programmes in other sectors, for the orderly development of the cities.

Bus services (which of course also use the road network) will continue to be a key part of the public transport service in Ireland. For example, the Dublin Bus Connects plan is a product of the Dublin strategy. It is intended to transform bus services in the capital. Despite an extensive train and light rail network in the capital, the vast majority of public transport in Dublin is provided by buses.

10.13 MAINTENANCE, TRAFFIC MANAGEMENT AND ROAD SAFETY

Section 13 of the Roads Act, 1993 (as amended) deals with the responsibility of road authorities for maintenance and construction of public roads.

10.13.1 Feasance/ Misfeasance/ Non-Feasance/ Malfeasance

If a local authority repairs a road in a negligent manner it is liable to be sued for damages. This is described as the principle of *misfeasance.* It relates to doing a lawful act improperly. A local authority is not, however, liable for injury to the user of any road resulting from failure to repair a road *(non-feasance).* Feasance comes from the latin word *facere* meaning 'to do'. E.g. facile, meaning easy to do.

- Feasance means to do something and implies a statutory duty.
- Non-feasance is defined as the neglect or failure to do some act or public duty which ought to be done and is required by law (e.g. failing to keep a highway in repair).
- Misfeasance means to do a lawful act in a negligent manner.
- Malfeasance is the doing of an unlawful act (e.g. trespass).

10.13.2 Maintenance of Essential Services in Severe Weather Conditions

While not directly related to road maintenance, an important function of road authorities is to ensure that plans are in place to deal with frost, snow, storm or blizzard conditions, or

other extreme weather events. This is of increasing importance due to the effects of climate change as we try to plan and cope with more frequent severe weather events.

10.13.3 Dangerous Structures, etc.

Section 70 of the Roads Act, 1993 empowers road authorities to deal with dangerous roadside trees, shrubs and vegetation and with dangerous structures on or near public roads.

10.13.4 Temporary Closing of Roads

Provisions relating to the temporary closing of roads are contained in Section 75 of the Roads Act, 1993 and the Roads Regulations, 1994. The temporary closing of road provisions are normally used in the case of road races, major road or bridge construction works, pipe laying and other similar works. The procedure is as follows:

- Notice of intention to temporarily close a public road must be published at least two weeks before the proposed closure in one or more newspapers circulating in the area.
- The Garda Superintendent for the District in which the road is situated must be notified in writing.
- The Notice should:
  - (a) describe the road
  - (b) state the period of closure
  - (c) state the reason for closure
  - (d) give particulars of alternative routes
  - (e) allow for representations or objections to be made to the road authority within a specified period of not less than three days from the date of the publication of the notice.
- Further Notice of the decision to close must be published at least seven days before the closure and the Garda Superintendent should be notified in writing.
- Where as a matter of urgency it is necessary to close a road and where that closure is to be prolonged, the road authority should, as soon as possible, publish a notice stating:
  - (a) that the road has been closed
  - (b) the reason why it was closed
  - (c) the period for which it is to be closed
  - (d) alternative routes.

10.13.5 Traffic Management

The Road Traffic Act, 1968 enabled traffic management functions (except enforcement) for a particular area to be devolved to local authorities. The Local Authorities (Traffic Wardens) Act, 1975 transferred the functions of recruiting traffic wardens from the Garda Commissioner to Local Authorities. The Road Traffic Act, 1994 gave substantial new powers to Local Authorities in relation to traffic management, parking controls and power to apply speed limits.

10.13.6 Road Safety

The Minister for Transport has responsibility for the development of road safety policy and legislation. Road safety initiatives include measures to reduce the number and severity of serious injuries arising from road collisions, with national road safety strategies typically identifying targets for the reduction in the number of road deaths per year and serious injuries per year. After a consistent fall in road deaths in the 2000s and 2010s, recent years have unfortunately seen an upturn in the number of fatalities on the road.

The Road Safety Authority (RSA), an agency under the aegis of the Department of Transport, was established in 2006 to take a lead role in the area of road safety and is responsible for the promotion of road safety, driver testing and licensing and vehicle standards. Its overall objective is to provide an environment for all road users that maximises safety and provides for efficient use of our road network.

10.14 ACTIVE TRAVEL AND TRANSPORT

This lesson has already highlighted the high dependence on roads as a mode of travel in Ireland and the high level of usage of private as distinct from public transport. One of the priorities in recent National Development Plans has been climate action, the transition to a net zero carbon economy, and climate mitigation measures (see Lesson on Climate Action). This implies the use of sustainable transport modes, and reflected in increased levels of investment targeting public transport systems, rail services and other 'active travel' facilities such as cycling and walking infrastructure.

As noted above, the National Development Plan envisages a significant shift towards the use of public transport, cycling, walking and trip reduction as well as improved access to transport services. This includes proposals around flexible working and workplace travel plans, fiscal measures to reduce discretionary travel (e.g. road pricing, carbon taxes) and technological solutions (e.g. incentives to promote electric vehicles, fuel economy and vehicle standards).

Drawing on funding from the NTA (see above), local authorities have established active travel teams to invest in local projects to develop dedicated cycleways, greenways, improved walking infrastructure and other efforts to make both walking and cycling safer and more attractive at local level.

10.15 NON-PUBLIC ROADS

County councils have powers under the Local Government Act 2001 to carry out Local Improvement Schemes (LIS) for the construction and improvement of *non-public accommodation* roads (farm roads and certain roads serving the public) and bog roads, and to undertake minor improvements. The roads must be in private ownership and serve at least two different landowners. A local contribution of 10-15% of the total costs is payable by the applicant.

10.16 CONCLUSION

This lesson was designed to underline the importance of a satisfactory road network. It began by stressing the significance of a properly constructed and maintained system of roads to the achievement of economic, social and community development. The essential link between roads and other services such as planning and housing was also stressed. The division of responsibilities, the sources of funding and the elements involved in the provision and maintenance of roads were outlined. The need to incorporate the principles of sustainability into the design and provision of projects and the need to introduce a more sustainable approach to the use of transport are issues that will be centre stage in the future.

KEY CONCEPTS AND TERMS

- Public Road
- Maintenance
- Right of Way
- Road Authority
- Transport Infrastructure Ireland (TII)
- National Transport Authority (NTA)
- Road Safety Authority (RSA)
- Road Management Offices (RMOs)
- Compulsory Purchase Order (CPO)
- Feasance, Non-feasance, Misfeasance, Malfeasance
- Extinguishment of Public Right -of-Way
- Abandonment of Public Rights of Way
- National Development Plan
- Toll Roads
- Public Private Partnership (PPP)
- Motorway
- Active Travel

STUDENT ACTIVITIES

1. Identify the number of kilometres of public road in your local authority area. How is this broken down between national, regional and local roads?

2. What are your local authority's grant allocations from TII, the Department of Transport and the NTA?

3. How much is in the budget (for your own local authority) from own resources for regional and local roads?

4. Has your local authority made a CPO in respect of a roads project (or indeed other transport initiatives such as greenways)? If so, who prepared it? What were the steps involved? Was there a local inquiry? Was the CPO confirmed?

5. What major improvement works are currently being carried out in your local area?

6. Examine the achievements of your local authority in respect of roads performance indicators by reviewing the latest NOAC report on performance indicators. How do these results compare with other similar local authorities?